

Anitya Prasad Das vs Sagarika Mohanty on 25 February, 2026

IN THE HIGH COURT OF ORISSA AT CUTTACK

MATA No.406 of 2025

Anitya Prasad Das Appellant

Represented by Adv.-
Mr. Ruchi Rajgarhia, Advocate

-versus-

Sagarika Mohanty Respondent

Represented by Adv.-
Mr. Soubhagya Sundar Das,
Advocate

CORAM:

HON'BLE MR. JUSTICE MANASH RANJAN PATHAK

AND

HON'BLE MR. JUSTICE SIBO SANKAR MISHRA

ORDER

Order No. 25.02.2026
(Hybrid mode)
I.A. No.593 of 2025

02. 1. Heard Mrs. Ruchi Rajgarhia, learned counsel
appearing for the appellant-husband and Mr.

Soubhagya Sundar Das, learned counsel appearing for the respondent-wife.

2. The appellant as petitioner has filed a petition under Section 11 read with Sections 5, 7 and 8 of the Hindu Marriage Act, 1955 before the Court of the learned Judge, Family Court, Jajpur, District-Jajpur being Civil Proceeding No.294 of 2022 praying to declare his marriage with the respondent-wife as null and void.

3. After hearing learned counsel for the parties, learned Judge, Family Court, Jajpur by judgment dated 01.09.2025, has dismissed the said appeal being Civil Proceeding No.294 of 2022.

4. Being aggrieved by the same, the connected appeal has been filed for a reported delay of three days in filing the appeal. Hence, this application for condonation of delay by the appellant.

5. After hearing learned counsel for the parties, we find sufficient reason has been shown by the appellant for delay of three days in preferring the connected appeal being Civil Proceeding No.294 of 2022.

6. Accordingly, the I.A. for condonation of delay stands disposed of.

(Manash Ranjan Pathak) Judge (Sibo Sankar Mishra) Judge

03.

1. Heard.

2. Admit this appeal.

3. Call for the scanned copy of the trial Court records of Civil Proceeding No.294 of 2022 disposed of on 01.09.2025 by the learned Judge, Family Court, Jajpur.

4. Mr. Soubhagya Sundar Das, learned counsel appearing for the respondent-wife has submitted that the respondent-wife has filed the interim application serving a copy on the learned counsel for the appellant-husband being I.A. No.130 of 2026 which is not on record. The Registry is directed to place the same on record.

5. List this matter after three weeks.

(Manash Ranjan Pathak) Judge (Sibo Sankar Mishra) Judge Subhasis Designation: Personal Assistant Location: High Court of Orissa, Cuttack. Date: 26-Feb-2026 10:20:44